

25VECV01571 25VECV01571

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-20

Motion: DEFENDANT STATE FARM INSURANCE COMPANIES' MOTION FOR PROTECTIVE ORDER

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Case Number: 25VECV01571 Hearing Date: August 20, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

STEPHEN KASSIN AND SHAY FAIRCHILD,

Plaintiffs,

vs.

STATE FARM INSURANCE COMPANIES and DOES 1-50, inclusive,

Defendants.

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CASE NO: 25VECV01571

[TENTATIVE] ORDER RE: DEFENDANT STATE
FARM INSURANCE COMPANIES' MOTION FOR PROTECTIVE ORDER

Dept. U

8:30 a.m.

August 20, 2026

A. BACKGROUND

This case arises from an alleged bad faith
denial of a homeowners' insurance claim.

On March 20,
2025, Plaintiffs filed their complaint against "State Farm Insurance
Companies," alleging: (1) breach of contract; and (2) tortious breach of the
implied covenant of good faith and fair dealing.

On April 17, 2025, Plaintiffs filed an
"Amendment to Complaint," naming Defendant "State Farm General Insurance

Company" ("Defendant") in lieu of Doe 1.

On May 2, 2025,
Defendant filed its answer to the complaint.

On June 4, 2026,
Defendant filed the operative motion for a protective order to prevent Gerald Newlin's deposition.

On August 14,
2026, Plaintiffs filed an untimely opposition. Pursuant to Code of Civil Procedure section 1005, subdivision (c), Plaintiffs were required to file an opposition on August 7, 2026. However, in its discretion, the Court considers Plaintiffs' opposition in its discretion.

B. RULING

Defendant State
Farm General Insurance Company's Motion for Protective Order is GRANTED in part and DENIED in part.

Defendant is ORDERED
to give notice.

C. LEGAL STANDARD

"Before, during,
or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040."
(Code Civ. Proc., § 2025.420, subd. (a).)

"The court, for
good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (1) That the deposition not be taken at all... (5) That the deposition be taken only on certain specified terms and conditions.... (9) That

certain matters not be inquired into. (10) That the scope of the examination be limited to certain matters....” (Code Civ. Proc., § 2025.420, subd. (b).)

“Where a party must resort to the courts, the burden is on the party seeking the protective order to show good cause for whatever order is sought.” (Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, 318.) “The issuance and formulation of protective orders are to a large extent discretionary. Ruling on motions for protective orders will not be disturbed absent an abuse of discretion.” (Id., at 316-317.)

“The state has two substantial interests in regulating pretrial discovery. The first is to facilitate the search for truth and promote justice. The second is to protect the legitimate privacy interests of the litigants and third parties. The interest in truth and justice is promoted by allowing liberal discovery of information in the possession of the opposing party. The interest in privacy is promoted by restricting the procurement or dissemination of information from the opposing party upon a showing of ‘good cause.’ The trial court is in the best position to weigh fairly the competing needs and interests of parties affected by discovery.” (Id., at 317.)

D. DISCUSSION

Defendant moves for a protective order preventing the taking of Gerald Newlin’s (“Newlin”) deposition as noticed by Plaintiffs on May 14, 2026, and preventing the enforcement of the Notice of Deposition’s document requests as directed to Newlin.

1. Defendant’s motion for a protective order is denied.

As an initial matter, Defendant’s counsel declares that on May 19, 2026, her office and opposing counsel met and conferred via telephone regarding Defendant’s objections to producing Newlin for deposition and Defendant’s intention to file this motion. (McKeon Decl., ¶ 5.) The

Court finds Defendant's meet and confer effort satisfies Code of Civil Procedure section 2025.420, subdivision (a) and accordingly turns to the motion's merits.

On May 14, 2026,

Plaintiffs served a Notice of Deposition ("NOD") noticing the deposition of Newlin for June 9, 2026, via Zoom. (McKeon Decl., ¶ 2, Exh. 1.) The NOD attached eight document requests for claim files, guidelines, training materials, and internal communications. (Ibid.)

On June 4, 2026, Defendant served written objections to the NOD on Plaintiffs' counsel. (Id., ¶ 6, Exh. 2.)

Defendant acknowledges

that Newlin is a State Farm employee but argues that a protective order is warranted because he "had no role in adjusting, investigating, or making any coverage decisions with respect to Plaintiffs' claim." (Id., ¶ 3; Mot., at p. 4.) Defendant further argues that the relevant information regarding Plaintiffs' claim's denial can be obtained from employees who actually dealt with the claim. (Ibid. ["Requiring Mr. Newlin to submit to a deposition on matters he knows nothing about would be a waste of everyone's time and resources."].) In addition, Defendant argues that the document requests are overbroad, seek privileged materials, and are inapplicable to Mr. Newlin because he was not involved with the claim at issue. (Mot., at p. 5.)

Defendant's

arguments in support of a protective order preventing the taking of Newlin's deposition are unpersuasive. Defendant has failed to sufficiently show "good cause" that Newlin's deposition would cause unwarranted annoyance, embarrassment, oppression, or undue burden and expense other than offering conclusory allegations. Defendant's argument that the document requests seek privileged materials is likewise conclusory and unsupported. The deposition is virtual. Newlin is a Section Manager for Defendant and Chase J. Mazza's ("Mazza") supervisor. (Opp. at p. 6.) Mazza is the team manager who oversaw the claim. (Opp. at p. 10.) Newlin was identified through Mazza's sworn testimony taken in this case. (Ibid.) Newlin is not as far removed from the claim's orbit as Defendant alleges.

However, the Court

does find some limitations are warranted. Because it is undisputed that Newlin did not deal with the claim at issue here, the Court limits the deposition and document requests to Newlin's supervision of Mazza, the scope of Mazza's

authority and discretion, and whether Mazza's investigation and denial complied with Defendant's standards and supervisory expectations.

2. Sanctions
are not warranted

The court
shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.¿ (Code Civ. Proc., § 2025.420(h).)

Neither Plaintiff
nor Defendant requested sanctions in their moving papers. Because the motion was granted and denied in part, the Court finds the imposition of sanctions unjust. CONCLUSION

Defendant State Farm General Insurance
Company's Motion for Protective Order is GRANTED in part and DENIED in part.

Defendant is ORDERED to give
notice.

DATED: August 20, 2026

Lee S. Arian

Judge of the
Superior Court